



महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष १०, अंक २३]

बुधवार, ऑगस्ट ७, २०२४/श्रावण १६, शके १९४६

[पृष्ठे ३४, किंमत : रुपये २७.००

असाधारण क्रमांक ६४

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि
विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (3) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Private Skills Universities (Establishment and Regulation) Act, 2024 (Mah. Act No. XXXV of 2024), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. XXXV OF 2024.

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 7th August 2024.)

An Act to enact a law to unify, consolidate and amend the laws relating to the self-financed private skills universities in the State of Maharashtra and to provide for establishment, incorporation and regulation of self-financed private skills universities for development and advancement of skill education and for matters connected therewith or incidental thereto.

WHEREAS, it is expedient to enact a law to unify, consolidate and amend the laws relating to self-financed private skills universities in the State of Maharashtra and to provide for establishment, incorporation and regulation of self-financed private skills universities for development and advancement of skill education and for matters connected therewith or

incidental thereto; it is hereby enacted in the Seventy-fifth Year of the Republic of India, as follows:—

Short title and commencement.

1. (1) This Act may be called as the Maharashtra Private Skills Universities (Establishment and Regulation) Act, 2024.

(2) It shall come into force on such date, as the State Government may, by notification in the *Official Gazette*, appoint.

Definitions.

2. In this Act, unless the context otherwise requires,—

(a) “Academic Council” means the Academic Council of the university;

(b) “adjunct professor”, “adjunct associate professor”, “adjunct assistant professor” or “professor of practice” means a person from industry, manufacturing and service sector, industrial associations, trade, agriculture, commerce, social, cultural, academic or any other allied field who is so designated during the period of collaboration or association with the university;

(c) “apprenticeship training” means a course of training in any industry or establishment undergone in pursuance of a contract of apprenticeship and under prescribed terms and conditions which may be different for different categories of apprentices;

(d) “authorities” means the authorities of the university as specified by or under this Act;

(e) “Board of Management” means the Board of Management constituted under section 28 of this Act;

(f) “campus” means the area of university within which it is established;

(g) “center of excellence” means the state-of-the-art training or research center established in collaboration with industry association or for the benefit of the industry and society, to provide all types of skills to students, in-service employees, working professionals and to undertake joint projects;

(h) “constituent institute” means a college or department or school or center or institute established by the sponsoring body which comes under the ambit of the university;

(i) “employee” means any person appointed by the university and includes teachers, officers and other staff of the university;

(j) “existing university” means the university specified in Part-I of the Schedule;

(k) “Faculty” means the Faculty of the university;

(l) “fee” means and includes tuition fees, other fees and charges including developmental charges collected by the university or its colleges, institutions, skill centers or study centers, as the case may be, from the students by whatever name it may be called which is non-refundable ;

(m) “Government” or “State Government” means the Government of Maharashtra;

(n) "Governing Body" means the Governing Body constituted under section 27 of this Act;

(o) "hostel" means a place of residence for the students of the university or its colleges, institutions, skill centers or study centers established or recognized to be as such by the university;

(p) "notification" means a notification published in the *Official Gazette*;

(q) "*Official Gazette*" means the Maharashtra Government *Gazette*;

(r) "on-job training" means a technique wherein students or employees are given direct instructions to perform their jobs on the actual work floor;

(s) "online and distance education" means education imparted by combination of any two or more means of communication, *viz.* broadcasting, telecasting, information communication technology, online contact programmes and any other such blended methodology;

(t) "prescribed" means prescribed by rules or regulations or Statutes or Ordinances, as the case may be, made by or under this Act;

(u) "President" means the President of the university who shall also be the Chancellor of the university;

(v) "regulatory body" means a body established by the Central Government or State Government for laying down norms and conditions for ensuring academic standards of education;

(w) "rules" means the rules made by the Government;

(x) "Schedule" means the Schedule appended to this Act;

(y) "section" means a section of this Act;

(z) "skill center" means a training center established by the university or extended to the university by industry, industry associations, corporates, companies and practitioners to provide skill training for the benefit of the industry, students, local population and all stakeholders;

(za) "Skill Department" means Skills, Employment, Entrepreneurship and Innovation Department, Government of Maharashtra;

(zb) "sponsoring body" in relation to a university established under this Act means,—

21 of
1860.

(i) a society registered under the Societies Registration Act, 1860; or

XXIX of
1950.

(ii) public trust registered under the Maharashtra Public Trusts Act; or

1 of
1956.
8 of
2013.

(iii) any educational institution established under section 25 of the Companies Act, 1956 or a company registered under the Companies Act, 2013;

(zc) "State" means the State of Maharashtra;

(zd) "Statutes", "Ordinances" and "regulations" mean respectively, the Statutes, Ordinances and regulations of the university made by or under this Act;

(ze) “student” means a person enrolled in the university for taking a program of study for obtaining a degree, diploma or other academic distinction instituted by the university, including a post-graduate degree, Doctorate of Philosophy and a research degree;

(zf) “study center” means a center established and maintained by the university for the purpose of advising, career guidance and counselling or for rendering any other assistance required by the students in the context of all the programs including online and distance education offered by the university;

(zg) “teacher” means a professor, associate professor, assistant professor, adjunct professor, professor of practices, industry experts or resource persons or any other person required to impart education, skills, practical training, guide research or render guidance in any form to the students for pursuing a course of study of the university;

(zh) “university” means the self-financed private skills university mentioned in the Schedule.

Detailed
Project
Report for
establishing
university.

3. (1) Any sponsoring body (including any private institute conducting educational activity) desirous of establishing a self-financed private skills university under this Act, may submit an application, alongwith a Detailed Project Report (DPR) containing a proposal for establishment of a skills university, to the Government in such manner alongwith such processing fees as may be specified by an order issued by the Government.

(2) The Detailed Project Report (DPR) shall contain the following particulars, namely:—

(i) details of the sponsoring body submitting an application under sub-section (1) alongwith the copies of its registration certificate, constitution and bye-laws;

(ii) information regarding financial resources of the sponsoring body alongwith audited accounts for the past three years for existing institutes conducting an educational activity or plan for mobilization for financial resources duly certified by the Chartered Accountant for newly established sponsoring body;

(iii) name, location and headquarters of the proposed skills university;

(iv) objects of the proposed skills university;

(v) availability of land and details of buildings and infrastructure facilities if already exists; or the master plan for the land acquisition, building construction and infrastructure establishment, in compliance with the applicable regulations of the regulatory body;

(vi) proposed plan and availability of academic facilities including teaching and non-teaching staff, if any, at the disposal of the sponsoring body;

(vii) details of plans for campus development such as construction of building, development of structural amenities, infrastructure facilities and procurement of equipments, etc., to be undertaken before the university starts functioning and phased programme for first five years;

(viii) phased outlay of capital expenditure proposed for the next five years and its sources of finance;

(ix) nature and type of programme of study and research proposed to be undertaken by the university and their relevance to the development goals and employment needs of the State and phasing of such programme for the first five years with course-wise enrolment targets;

(x) experience and expertise in concerned skill sectors at command of sponsoring body;

(xi) nature of facilities, courses of study and work of research proposed to be started;

(xii) estimated recurring expenditure course-wise or activity-wise, source of finance and estimated expenditure per student;

(xiii) scheme of mobilization of resources and the cost of capital thereto and the manner of repayment of such resources;

(xiv) scheme for generation of funds internally, through the recovery of fees from the students, revenues anticipated from consultancy services and other activities relating to the objects of the university and other anticipated income;

(xv) supportive plan for skill educational enhancement of the weaker section of society domiciled in the State through special provision and affirmative action in this regard;

(xvi) system proposed to be followed for selecting students for admission to the courses of study of the university;

(xvii) nature of programmes related to local needs and nature of specialized teaching, training or research activities, to be undertaken by the university to fulfill the objects of the proposed university;

(xviii) whether the university proposes to start some programmes for the benefits of farmers, agricultural labourers, other labourers, women and industries, if so, details thereof may be given;

(xix) details of playgrounds and other facilities available or proposed to be created for games, sports and extra-curricular activities like National Cadet Corps (NCC), National Service Scheme (NSS), etc.;

(xx) arrangements proposed to be made for academic auditing;

(xxi) justification regarding the necessity of establishment of the proposed skill university;

(xxii) commitment to follow the norms of the regulatory body;

(xxiii) such other details as the sponsoring body may like to provide;

(xxiv) such other details as may be specified by an order issued by the Government.

4. (1) On receipt of an application containing the proposal for establishing the skills university alongwith Detailed Project Report (DPR) by the sponsoring body, the Scrutiny Committee constituted by an order, issued by the Government, shall scrutinize the proposal and the Detailed Project Report on the following grounds, namely:—

Submission and examination of Detailed Project Report.

(a) financial soundness and assets of the sponsoring body and its ability to set up the infrastructure of the proposed skills university;

(b) background of the sponsoring body that is to say its expertise

and experience in the field of skill education, its general reputation, etc., and its commitment to follow the norms of the regulatory body;

(c) potential and capability of sponsoring body to offer proposed academic programme, research and innovation activities, framing curriculum as per the education policy of the regulatory body, if any, that is to say ability of the academic programme to develop the human resources as per the requirements of the contemporary demand; including the distinctiveness of the programme as defined in the objects of the proposed university;

(d) whether the proposal is in consonance with standards of skill education specified by the concerned regulatory body, if any;

(e) whether the proposal is in consonance with the orders issued by the State Government in this behalf, from time to time.

(2) The Scrutiny Committee while scrutinizing the proposal and Detailed Project Report may call for such other information from the sponsoring body as it may think proper.

(3) The Scrutiny Committee shall submit its report to the Government for consideration with the suggestions, if any.

Issuance of
Letter of
Intent and
Compliance
Report.

5. (1) After receiving the report of the Scrutiny Committee constituted under section 4, if the Government is satisfied that it is advisable to establish the university, it may issue a Letter of Intent and requires the sponsoring body to,—

(i) establish an endowment fund in accordance with the provisions of section 13;

(ii) submit the title deeds showing that the sponsoring body owns and is in possession of a minimum land as per the norms specified by an order issued by the Government;

(iii) fulfil such other conditions and provide such other information as may be specified by the University Grants Commission or any other regulatory body established by law;

(iv) construct a covered space if not already available, for administrative purposes and for conducting academic programmes, as per the norms specified by an order, issued by the Government;

(v) give an undertaking to appoint Professor, Associate Professor and adequate number of Assistant Professors alongwith necessary supporting staff in each department or discipline to be started by the university as per the norms laid down by the regulatory body;

(vi) give an undertaking to take up co-curricular activities like seminars, debates, quiz programmes and extra-curricular activities like games, sports, National Service Scheme (NSS), National Cadet Corps (NCC), etc., for the benefit of students as per the norms laid down by the regulatory body;

(vii) give an undertaking for establishment of provident fund and to take up welfare programmes for the employees of the university;

(viii) fulfil such other conditions as to infrastructure and other requirements and provide such other information as may be laid down by regulatory body or prescribed by rules issued in this behalf.

(2) The sponsoring body shall fulfil the requirements and conditions specified in sub-section (1) and shall report the compliance to the Government within a period not exceeding one year from the date of issue of Letter of Intent. The Government may, in exceptional circumstances, extend the said period by an order on payment of such fees as may be specified therein.

(3) On receipt of the compliance report submitted by the sponsoring body, the Government shall by an order, appoint a Verification Committee to verify the compliance report.

(4) The Verification Committee shall submit its report to the Government within one month from the date of its visit to the proposed skills university specifying whether the sponsoring body has fulfilled the requirements and conditions laid down in sub-section (1). The Government may extend the period of submission of report by the Verification Committee upto the maximum period of three months.

(5) If the sponsoring body fails to comply with the provision of sub-section (1), proposal submitted by the sponsoring body under section 3 shall stand rejected and the Letter of Intent issued under sub-section (1) shall be deemed to have been withdrawn.

6. (1) The Government may, after considering the report submitted by the Verification Committee under sub-section (4) of section 5, if satisfied that the sponsoring body has complied with the provisions of section 5, permit the establishment of a skills university, by inclusion of the name, location and headquarters of the private skills university and its sponsoring body in Part II of the Schedule by amending the Schedule by enacting a law. Establishment and incorporation of university.

(2) The President, Vice-Chancellor and members of the Governing Body, Board of Management and Academic Council and all other persons who may hereafter become such officers or members, so long as they continue to hold such office or membership, are hereby constituted and declared to be a body corporate by the name specified therefor in the Schedule.

(3) The universities mentioned in the Schedule shall have perpetual succession and common seal and shall sue and be sued by that name.

(4) In relation to each of the existing skills university and its sponsoring body specified in columns (2) and (4), respectively, of Part I of the Schedule, the corresponding university with the name, location and headquarters specified against it in column (3) of the said Part I, is deemed to have been established under this Act, for the objects for which it was constituted immediately before the date of commencement of this Act and the provisions of this Act shall be applicable to such university.

(5) The university shall function as a non-affiliating unitary university established under this Act and it shall not affiliate any other college or institute for the award or conferment of degree, diploma or certificate to the students admitted therein.

(6) Every university shall establish an Internal Quality Assurance Cell as required by the National Assessment and Accreditation Council (NAAC) for continual internal assurance process and periodic external peer review. The quality reports shall be submitted to the Government.

7. (1) The Secretary Level Committee consisting of Secretary of the Skills, Employment, Entrepreneurship and Innovation Department, the Finance Department and the Planning Department shall, after establishing Secretary Level Committee.

the university, verify whether the sponsoring body has complied with the undertakings submitted by it and the requirements relating to operationalization of the university specified in the Letter of Intent and the provisions of this Act and the rules made thereunder.

(2) The Committee constituted under sub-section (1), shall submit its report to the Government.

(3) On receipt of the report under sub-section (2), the State Government shall, publish a notification in the *Official Gazette* allowing the operationalization of the university.

(4) The university shall admit the students only after issuance of the notification under sub-section (3).

Inspection by
Secretary
Level
Committee.

8. The Secretary Level Committee may carry out an inspection of the university as and when directed by the Government and shall also verify and ensure compliance of the requirements relating to the establishment of self-financed skills universities and such committee shall also verify and ensure compliance of the provisions of the relevant laws for the time being in force.

Objects of
university.

9. (1) The objects of the university shall be as follows, namely : —

(a) to develop qualified youth with skill proficiency and competency at different levels;

(b) to provide learning, teaching, capacity, capability and skills development and entrepreneurial training, covering a wide spectrum of domains and specializations as may be relevant from time to time in the fields in which future jobs are going to be created such as Automotive, Apparel and Furnishing, Aviation and Aerospace, Media and Entertainment, Film, Capital Goods, Communication, Design, Technology, Management and Entrepreneurship, Business, Banking and Insurance, Healthcare, Hospitality, Logistics, Sports, Travel and Tourism, Life Sciences, Applied and Creative Arts, Humanities, Data Science and Artificial Intelligence, E-Business, Retail, Analytics, Agri Business related to industry 4.0, skill based Courses of National Higher Education Qualification Framework (NHEQF) and any other fields of study including the imparting of skills that have employment potentiality;

(c) to create and deploy new educational programs to promote creativity, innovation and entrepreneurship for inventing of new ways for development and social reconstruction and transformation;

(d) to create entrepreneurs and intrapreneurs by providing necessary skill and support;

(e) to frame credit framework for competency based skills education;

(f) to establish state-of-the-art facilities for education, skills training and entrepreneurship development;

(g) to carry out teaching, research and offer continuing quality skills education programmes;

(h) to start skills development programs aiming for employment and entrepreneurship, courses in new and emerging areas with innovative approaches;

(i) to institute degrees, post-graduate degree, Doctorate of Philosophy, research degree, diplomas, certificates and other academic distinctions on the basis of examinations, or any other methods of evaluation;

(j) to provide choice based credit system courses including online credit courses;

(k) to provide higher vocational skill development and training through a variety of programs leading to gainful employment, entrepreneurship, on-job training and apprenticeship training;

(l) to establish links, collaborations and partnerships with other institutions, industry and industry associations in India and abroad;

(m) to establish innovative approaches for creation of seamlessness in academic structures, learning time-frames and working and continuous evaluation processes for nurturing and cultivation of creativity and entrepreneurship;

(n) to aim at reaching the unreached by using latest Information Communication Technology to deliver education, training and teaching resources to learners;

(o) to provide a teaching learning pedagogy which combines multiple forms of education and learning pedagogy and delivery (blended or distance or online or skill or other) and thus provide a 'Virtual Campus' where students will come together with experienced faculty and industry members to develop and evolve;

(p) to provide learning opportunities to wide range of learners representing diverse backgrounds, age groups and socio-economic status and geographic location through a self-paced, self-styled, face to face and online learning environment;

(q) to deliver blended or distance or online degrees in skills education with prior permission of the competent authority;

(r) to collaborate with other colleges, universities, research institutions, profit and non-profit organizations, corporates, industry, industry associations, professional associations or other organizations in India or overseas to conceptualize, design, develop and offer specific education and research programmes, training programmes, skill exchange programmes for students, faculty members and others;

(s) to provide a teaching learning pedagogy focused on hands-on training, professional and skill based training in line with market needs;

(t) to conduct research in labour market requirements in order to understand emerging trends and offer suitable curricula, courses and programmes;

(u) to undertake collaborative research and advocacy with any organizations in India or overseas for promoting innovative models of education, research, training and skill development aiming for employment and entrepreneurship;

(v) to design and deliver high quality training, capacity building and development systems for teachers, administrators and working professionals;

(w) to collaborate with other institutes, industries, businesses, universities or labs or agencies or organizations of repute from other States of India or foreign countries to offer joint programmes or courses or research or exchange faculty or information or share practices and

give or receive equipment or resources or grants or consultancy for benefit of students;

(x) to offer mechanism and facility for recognition of prior learning, upskilling and reskilling;

(y) to offer mechanism and facility of credit banking or transfer system to create options of multi-entry and exit and opportunities for movement across universities or domains or sectors;

(z) to provide students an opportunity of life long and continuous training through university courses offered through conventional or blended or distance or online education and other education delivery models suitable for different pedagogical approaches and systems;

(za) to provide education, training and skills development opportunities to the informal sector and unorganized workforce in order to build productivity;

(zb) to provide flexible and modular learning pathways thereby enabling multi-entry and exit option;

(zc) to provide vertical mobility to students undergoing technical, vocational and skills based education and training by offering Diploma, Bachelor, Masters and Doctoral programmes in high growth sectors and offer various specializations to prepare our youth towards gainful employment;

(zd) to provide a flexible and open system of learning;

(ze) to conduct pedagogical and skill enhancement training and development programmes for faculty and trainers who are involved in imparting vocational education and skill training;

(zf) to provide professional and development services to the industry, organizations, agencies and the society at large;

(zg) to undertake skill assessment certification for the students studying in the university as well as for other students, agencies, training providers, institutions, industry and organizations ; to organize training on conducting skill assessments for faculty, trainers, agencies, institutions and organizations ; to do research in the pedagogy of skill assessments, online assessments, computerized assessments or tests and develop required software, hardware solutions or other systems or processes for carrying out assessments or tests ;

(zh) to use modern and post-modern processes, mechanisms and technologies for governance and management of learning, teaching, researching, evaluating, developing, organizing and creating socio-economic wealth for individuals and society for twenty first century;

(zi) to encourage industry and industry association, participation through establishment of innovation labs, in-service training centers, workshops and active participation in all aspects of governance, curricula design, skill training, placements, internships, consultancy, joint projects, etc ;

(zj) to establish campuses, skill centers, community colleges, study centers, information centers, test or examination centers, centers of excellence, off campus, off shore campuses, etc. at various locations in and outside the State and country to facilitate delivery, student

services and dissemination of education, consultancy, information and skill training with the permission of competent regulatory body after five years of its establishment;

(zk) to liaison or collaborate with various ministries, State bodies, departments, agencies or other statutory bodies at state, national, international level in order to understand education, skill employment and entrepreneurship needs and to impart programmes accordingly;

(zl) to interact with industries for participation in curricula development, teacher training, practical, research, on-job training, skill assessment certifications etc.;

(zm) to undertake necessary or expedient action to pursue and promote the objectives of the university;

(zn) to ensure that the standard of the degree, diplomas, certificates and other academic distinctions conferred by a university are not lower than those laid down by the competent regulatory body;

(zo) to pursue any other objectives as may be suggested by the Government.

(2) The Government may, by notification in the *Official Gazette*, notify the special objects of the university.

(3) The notification issued under sub-section (2) shall be laid before both Houses of the State Legislature.

10. The university shall have the following powers and functions, namely:— Powers and functions of university.

(i) to make provisions and adopt all measures (including adoption and updating of the curricula) in respect of study, teaching and research, relating to the courses through traditional as well as new innovative modes including online education mode;

(ii) to develop curriculum packages and credit frameworks for different levels as may be prescribed by the university;

(iii) to define norms and parameters of skills education, teaching and instruction, consistent with the credit framework in skilling as issued by the University Grants Commission (UGC) and the National Credit Framework (NCrF), from time to time, as the university may deem fit;

(iv) to institute degrees, diplomas, certificates and other academic distinctions on the basis of successful completion of respective degree programmes and award of credits for academic work evaluated through multiple methods of assessment;

(v) to conduct and hold examinations;

(vi) to take necessary action to ensure students enrolled in programmes are completing their programmes and achieving target outcomes including apprenticeship training and on-job training;

(vii) to provide for the degrees, diplomas, certificates, equivalent or corresponding to the degrees, diplomas, certificates of other recognized Universities, Boards or Councils;

(viii) to deliver choice based credit system courses including online credit courses ;

(ix) to deliver higher vocational skill development and training through a variety of programmes leading to gainful employment, entrepreneurship, on-job training and apprenticeship training;

(x) to offer any academic programmes, as approved by its statutory bodies, from time to time;

(xi) to take all necessary measures for setting up campus;

(xii) to institute and confer honorary degrees as may be prescribed;

(xiii) to institute and award fellowships, scholarships, studentships as may be specified;

(xiv) to take special measures for spreading educational facilities among the educationally backward strata of the society;

(xv) to create technical, administrative and other necessary posts and to make appointments thereto;

(xvi) to undertake research projects on mutually acceptable terms and conditions;

(xvii) to provide consultancy services;

(xviii) to frame Statutes, Ordinances and regulations for carrying out the objects of the university in accordance with the provisions of the Act;

(xix) to encourage and promote co-curricular activities for personality development of the teachers, students and employees of the university;

(xx) to provide for dual degrees, diplomas or certificates *vis-a-vis* other universities on reciprocal basis within and outside the country as per instructions of the competent regulatory body;

(xxi) to make such provisions for integrated courses in different disciplines of the university;

(xxii) to set-up centers, colleges, institutions, off-campus centers, off-shore campus, study centers, skill centers, examination centers, centers of excellence, satellite centers as per the instructions issued by the State Government, Central Government and competent regulatory body, from time to time;

(xxiii) to receive donations, gifts and grants and to acquire, hold, manage and dispose of any property, movable or immovable, including trust or endowed property within or outside the State for the purposes and objects of the university with reference to prevailing rules regulations and to invest funds as prescribed;

(xxiv) to prescribe the fee structure for various programmes or courses, from time to time, as per provisions of this Act;

(xxv) to demand and receive payments of such fees and other charges, as may be specified, from time to time;

(xxvi) to seek collaboration with other institutions, industry, industry associations on mutually acceptable terms and conditions;

(xxvii) to determine salaries, remunerations, honoraria to teachers and employees of the university in accordance with the norms specified by the competent regulatory bodies;

(xxviii) to organize and to undertake extra-mural teaching and extension services;

(xxix) to regulate and enforce discipline among students and employees of the university and to take such disciplinary measures as may be deemed necessary;

(xxx) to make arrangements for promoting health and general welfare of the students and the employees of the university;

(xxxi) to co-operate with any other university in and outside the country, authority or any public or private body having in view the promotion of purposes and objects similar to those of the university for such purposes as may be agreed upon, on such terms and conditions as may be specified, from time to time;

(xxxii) to provide for the printing, re-printing and publication of research and other work, including text books, which may be issued by the university;

(xxxiii) to comply with and carry out directives issued by the State Government from time to time, with reference to above powers, duties and responsibilities of the university;

(xxxiv) to make provisions for designing the program structures, curricula, credit system, teaching learning methodology, evaluation pedagogy and adopt all measures in respect of study, teaching and research, relating to the programs offered by the university, in line with industry requirement;

(xxxv) to prescribe norms of minimum qualification for teachers, staff and Industry experts or resource persons to be appointed in teaching cadre and for training;

(xxxvi) to prescribe the evaluation methodology including modalities of industry based skill assessment, industry based projects, internships, on job training and any related activities;

(xxxvii) to institute choice based credit system inline with skill development pedagogy, providing students the facility of multi-entry-exit and credit banking and transfer at all levels;

(xxxviii) to establish Department of Distance and Online Learning and Continuing Education, to offer certificate, diploma and degree programs to students and working professionals;

(xxxix) to deliver blended or online degrees in skill education with prior permission of competent authority;

(xl) to introduce online learning programs as per needs of the students and industry;

(xli) to purchase or to take on lease or leave and license any land or building, premises or infrastructure which may be necessary or convenient as the university may deem fit for attainment of its objects;

(xlii) to conduct multiple enrolment cycles for Online Learning programmes being offered by the university;

(xliii) to institute scheme for multi-entry and multi exit, recognition of prior learning, credit banking and transfer, credit waiver, vertical and lateral mobility and any other such scheme which promotes skill development at large;

(*xliv*) to establish Department of Recognition of Prior Learning to provide equivalency certificates, course exemptions, bridge courses, certificate of skill mapping, flexible learning pathways etc., to students;

(*xlv*) to undertake skill assessments for the students studying in the university as well as for other students, agencies, training providers, institutions, industry and organizations, desirous of undertaking third party assessments;

(*xlvi*) to establish Vocational and Employment Guidance Cell to interact with local industries to understand the employment opportunities and emergent job requirements and to help students choose a career of his or her choice through career counselling;

(*xlvii*) to impart career guidance and counselling to the youth;

(*xlvi*) to set up central library, departmental libraries, museums and allied matters;

(*xliv*) to encourage and promote sports and other extra-curricular activities ;

(*l*) to establish and maintain halls and hostels ;

(*li*) to recognize, supervise and control halls and hostels not maintained by the university for the residence of the students and to withdraw any such recognition ;

(*lii*) to comply and follow, from time to time, the provisions of the University Grants Commission (Establishment of and Maintenance of Standards in Private Universities) Regulations, 2003 or any other regulations or directions issued by the University Grants Commission ;

(*liii*) to do all such things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the university.

University
open to all.

11. (1) No citizen of India shall be excluded from any office of the university or from membership of any of its authorities, bodies or committees, or from appointment to any post or from admission to any degree, diploma, certificate or other academic distinction or course of study on the ground only of sex, race, creed, class, caste, place of birth, nationality, religious belief or profession, or political or other opinion;

(2) The university shall adopt policies and orders of the Government issued, from time to time, in regard to the reservation for Scheduled Castes, Scheduled Tribes, De-notified Tribes (*Vimukta Jatis*), Nomadic Tribes, Other Backward Classes, Special Backward Category, Person with Disability and Economically Weaker Sections (EWS) for the purpose of admission of students in the university, university departments and institutions of the university.

(3) The university shall adopt the general policy of the State Government in regard to the welfare of various categories of weaker sections of the society and minorities as directed by the State Government, from time to time.

University to
be self-
financed.

12. Every university established under this Act shall be self-financed. The university shall not be entitled to any financial assistance of any nature from the Government and any student admitted to university shall not be entitled to claim for any type of financial assistance or scholarship or reimbursement of fees from the State Government.

13. (1) The sponsoring body shall establish a permanent statutory fund to be called the “the Endowment Fund” for the university with such amount as may be specified by an order issued by the Government. Endowment Fund.

(2) The Endowment Fund shall be used as security deposit to ensure strict compliance of the provisions of this Act and rules, Statutes, Ordinances or regulations, made thereunder.

(3) The Government shall have the powers to forfeit, in the prescribed manner, a part or whole of the Endowment Fund in case the university or the sponsoring body contravenes any of the provisions of this Act, rules, Statutes, Ordinances or regulations made thereunder.

(4) Income from Endowment Fund may be utilized for the development of infrastructure of the university, but shall not be utilized to meet out the recurring expenditure of the university.

(5) The amount of Endowment Fund shall be invested by the university until the dissolution of the university, by way of fixed deposit in the Nationalized Bank with the Director, Directorate of Vocational Education and Training as joint holder, subject to the condition that the amounts so invested from the fund shall not be withdrawn without the permission of the Government.

14. The university shall also establish a fund, which shall be called the General Fund. General Fund to which following shall be credited, namely :—

- (i) fees and other charges received by the university;
- (ii) any contribution made by the sponsoring body ;
- (iii) any income received from consultancy and other works undertaken by the university;
- (iv) bequests, donations, endowments and any other grants ; and
- (v) all other sums received by the university.

15. The General Fund shall be utilized for meeting all expenses, recurring or non-recurring in connection with the affairs of the university: Application of General Fund.

Provided that no expenditure shall be incurred by the university in excess of the limits for total recurring expenditure and total non-recurring expenditure for the year, as may be fixed by the Board of Management, without the prior approval of the Board of Management.

16. The following shall be the officers of the university, namely :— Officers of university.

- (i) the President, who shall also be the Chancellor;
- (ii) the Vice-Chancellor;
- (iii) Deans of faculties;
- (iv) the Registrar;
- (v) the Chief Finance and Accounts Officer;
- (vi) the Director of Assessment and Evaluation; and
- (vii) such other persons in the service of the university as may be prescribed by the Statutes to be the officers of the university.

President.

17. (1) The President shall be appointed by the sponsoring body for a period of five years with the approval of Government in such manner as may be prescribed by rules.

(2) The eligibility criteria for the post of the President shall be such as may be prescribed by rules and Regulations.

(3) The President shall be the Head of the university.

(4) The President shall preside over at the meetings of the Governing Body and convocation of the university for conferring degrees, diplomas or other academic distinctions.

(5) The President shall have the following powers, namely:—

(a) to call for any information or record from any officer or authority of the university, relating to the affairs of the university;

(b) to appoint the Vice-Chancellor;

(c) to remove the Vice-Chancellor in accordance with the provisions of section 20 of this Act;

(d) such other powers as may be prescribed by the Statutes.

Removal of
President.

18. The President may be removed from his office by the sponsoring body, if it is satisfied that the incumbent,—

(a) is of unsound mind and stands so declared by a competent Court; or

(b) has been convicted by a court for any offence involving moral turpitude; or

(c) become an undischarged insolvent and stands so declared by a competent Court;

(d) become physically unfit and incapable of discharging the functions or duties of the office due to protracted illness or physical disability; or

(e) wilfully omitted or refused to carry out the provisions of this Act or has committed breach of any of the terms and conditions of the service contract or any other conditions prescribed by the Statutes, or has abused the powers vested in him or if the continuance of the President in the office has become detrimental to the interests of the university:

Provided that, the President shall be given a reasonable opportunity to show cause by the sponsoring body before taking recourse to action under clauses (d) and (e) for his removal from the said office.

Vice-
Chancellor.

19. (1) The Vice-Chancellor shall be appointed by the President from the panel of three persons, fulfilling the eligibility criteria as per the rules or regulations framed by the University Grants Commission (UGC), recommended by the Search-cum-Selection Committee Constituted as per the said rules and regulations and on such terms and conditions as may be specified by Statutes and Ordinances. The Vice-Chancellor, shall, subject to the provisions contained in section 20, hold office for a term of three years:

Provided that, after the expiry of the term of three years, the Vice-Chancellor shall be eligible for re-appointment for another term of three years:

Provided further that, the Vice-Chancellor shall continue to hold his office even after the expiry of the said term till the new Vice-Chancellor joins his office; however, in any case, this period shall not exceed one year.

(2) The Vice-Chancellor shall be the principal executive and academic officer of the university and shall have the powers of superintendence and control over the affairs of the university and shall execute the decisions of various authorities of the university.

(3) The Vice-Chancellor shall preside over at the convocation of the university in the absence of the President.

(4) If, in the opinion of the Vice-Chancellor, it is necessary to take immediate action on any matter for which powers are conferred on any other authority by or under this Act, he may take such action as he deems necessary and shall at the earliest opportunity thereafter, report his action to such officer or authority as would have in the ordinary course dealt with the matter:

Provided that, if in the opinion of the concerned officer or authority such action should not have been taken by the Vice-Chancellor, then such case shall be referred to the President, whose decision thereon shall be final.

(5) If, in the opinion of the Vice-Chancellor, any decision of any authority of the university is outside the powers conferred by this Act or Statutes, Ordinances, regulations or rules made thereunder or is likely to be prejudicial to the interests of the university, he shall request the concerned authority to revise its decision within fifteen days from the date of decision and in case the authority refuses to revise such decision wholly or partly or fails to take any decision within fifteen days, then such matter shall be referred to the President and his decision thereon shall be final.

(6) The Vice-Chancellor shall exercise such powers and perform such duties as may be prescribed by the Statutes or the Ordinances.

(7) If at anytime upon representation made or otherwise and after making such inquiry as may be deemed necessary, the situation so warrants and if the continuance of the Vice-Chancellor is not in the interests of the university, the President with approval of Governing Body may, by an order in writing stating the reasons therein, ask the Vice-Chancellor to relinquish his office from such date, as may be specified in the order:

Provided that, before taking an action under this sub-section, the Vice-Chancellor shall be given an opportunity of being heard.

20. The Vice-Chancellor may be removed from his office by the President if, he is satisfied that the incumbent,—

Removal of Vice-Chancellor.

(a) is of unsound mind and stands so declared by a competent court; or
(b) been convicted by a court for any offence involving moral turpitude; or

(c) becomes an un-discharged insolvent and stands so declared by a competent court; or

(d) become physically unfit and incapable of discharging the functions or duties of the office due to protracted illness or physical disability; or

(e) willfully omitted or refused to carry out the provisions of this Act or has committed breach of any of the terms and conditions of the service contract or any other conditions laid down by the Statutes or has abused the powers vested in him or the continuance of the Vice-Chancellor in the office has become detrimental to the interests of the university:

Provided that, the Vice-Chancellor shall be given a reasonable opportunity to show cause by the President before taking recourse to clause (d) or (e) for his removal.

Deans of Faculties. **21.** (1) The Deans of Faculties shall be appointed by the President in such manner and on such terms and conditions of service as may be prescribed by the Statutes.

(2) The Deans of Faculties shall assist the Vice-Chancellor in managing the academic and other affairs of the university and shall exercise such powers and perform such functions as may be prescribed by regulations or be entrusted by the President and the Vice-Chancellor.

Registrar. **22.** (1) The Registrar shall be appointed by the President in such manner and on such terms and conditions of service as may be specified by the Statutes.

(2) The Registrar shall be the Chief Administrative Officer of the university. Subject to the decisions of the authorities of the university, he shall have the power to enter into an agreement, contract, sign documents and authenticate records on behalf of the university. He shall exercise such powers and perform such duties as may be specified by the Statutes.

(3) The Registrar shall be the Member-Secretary of the Governing Body, Board of Management and Academic Council, but shall not have the right to vote.

(4) The Registrar shall be the custodian of the records, the common seal and such other property of the university as the Governing Body may, commit to his charge.

(5) The Registrar shall exercise such other powers and perform such other duties as may be prescribed by or under this Act, or, as may be conferred on him by the Statutes or, may be assigned to him, by the Vice-Chancellor, from time to time.

Director of Assessment and Evaluation. **23.** (1) The Director of Assessment and Evaluation shall be appointed by the President in such manner and on such terms and conditions of service, as may be prescribed by the Statutes.

(2) The Director of Assessment and Evaluation shall be the Principal officer-in-charge of the conduct of examination and tests of the university and declarations of their results. He shall discharge his functions under the superintendence, directions and guidance of the Vice-Chancellor.

(3) The Director of Assessment and Evaluation shall be a full-time salaried officer of the university and shall work directly under the direction and control of the Vice-Chancellor of the university. His appointment shall be for a term of three years and he shall be eligible for re-appointment for another term not exceeding three years. The qualifications and experience for the purpose of selection of the Director of Assessment and Evaluation, shall be such as may be prescribed by the Statutes.

(4) The Director of Assessment and Evaluation shall be responsible for,—

(a) preparing and announcing in advance the calendar of examinations;

(b) arrangement for printing of question papers;

(c) arrangement for the timely publication of result of examinations and other tests;

(d) taking disciplinary action where necessary against the candidates, paper-setters, examiners, moderators, or any other persons connected with examinations and found guilty of malpractices in relations to the examinations;

(e) reviewing from time to time, the results of university examinations and forward reports thereon to the Academic Council.

(5) The Director of Assessment and Evaluation shall exercise such other powers and perform such other duties as may be prescribed by the Statutes or assigned to him.

24. (1) The Chief Finance and Accounts Officer shall be the principal finance, accounts and audit officer of the university. Chief Finance and Accounts Officer.

(2) The Chief Finance and Accounts Officer shall be appointed by the President in such manner and on such terms and conditions of service as may be prescribed by the Statutes.

(3) The Chief Finance and Accounts Officer shall exercise such powers and perform such duties, as may be prescribed by the Statutes.

25. (1) The university may appoint such other officers as may be necessary for its functioning. Other officers.

(2) The manner of appointment of other officers of the university, the terms and conditions of service of such officers and their powers and functions shall be such as may be prescribed by the Statutes.

26. The following shall be the authorities of the university, namely :— Authorities of university.

(a) the Governing Body;

(b) the Board of Management;

(c) the Academic Council;

(d) the Board of Assessment and Evaluation; and

(e) such other authorities as may be prescribed by the Statutes to be the authorities of the university.

27. (1) The Governing Body of the university shall consist of the following members, namely :— Governing Body.

(a) the President;

(b) the Vice-Chancellor;

(c) five persons, nominated by the sponsoring body out of whom two shall be eminent educationists and remaining shall be industry experts having five years of experience in skill development;

(d) one expert from the field of management or information technology from outside the university, nominated by the President;

(e) two persons, nominated by the State Government having five years of experience in skill development;

(f) the Registrar of the university shall be the permanent invitee to the Governing Body but shall not have right to vote.

(2) The Governing Body shall be the supreme authority of the university.

(3) The Governing Body shall have the following powers, namely :—

(a) to provide general superintendence, quality control and directions and to control functioning of the university by using all such powers as are provided by this Act and the rules, Statutes, Ordinances and regulations made thereunder;

(b) to review the decisions of other authorities of the university in case they are not in conformity with the provisions of this Act and the rules, Statutes, Ordinances and regulations made thereunder;

(c) to approve the budget and annual report of the university;

(d) to lay down the policies to be followed by the university;

(e) to recommend to the sponsoring body about the voluntary liquidation of the university if a situation arises when smooth functioning of the university does not remain possible, inspite of all efforts; and

(f) such other powers as may be prescribed by the Statutes.

(4) The Governing Body shall meet at least thrice in a calendar year or minimum once in every four months.

(5) The quorum for meetings of the Governing Body shall be five.

Board of Management. **28.** (1) The Board of Management shall consist of the following members, namely :—

(a) the Vice-Chancellor;

(b) two members of the Governing Body, nominated by the sponsoring body;

(c) two Deans of the faculties, by rotation, to be nominated by the Vice-Chancellor;

(d) three persons, who are not the members of the Governing Body, nominated by the sponsoring body;

(e) three persons from amongst the teachers, nominated by the sponsoring body; and

(f) the registrar, as the Member-Secretary.

(2) The Vice-Chancellor shall be the Chairperson of the Board of Management.

(3) The powers and functions of the Board of Management shall be such as may be prescribed by the Statutes.

(4) The Board of Management shall meet at least once in every two months.

(5) The quorum for meetings of the Board of Management shall be five.

Academic Council. **29.** (1) The Academic Council shall consist of the Vice-Chancellor and such other members as may be prescribed by the Statutes.

(2) The Vice-Chancellor shall be the *ex-officio* Chairperson of the Academic Council.

(3) The Academic Council shall be the principal academic body of the university and shall, subject to the provisions of this Act and the rules, Statutes and Ordinances made thereunder, co-ordinate and exercise general supervision over the academic policies of the university.

(4) The quorum for meetings of the Academic Council shall be such as may be prescribed by the Statutes.

30. (1) The Board of Assessment and Evaluation shall be the principal authority of the university for conducting the examination and making policy decisions in regard to organizing and holding examinations, schemes or policies for skill based assessments and weightage, improving the system of Assessment and Evaluation, appointing the paper-setters, examiners, moderators, skill assessors from industry and also prepare the schedule of Assessment and Evaluation and declaration of results. The Board of Assessment and Evaluation shall also oversee and regulate the conduct of examinations in examination centers, skill centers, study centers or any center related to the university.

Board of
Assessment
and
Evaluation.

Explanation.— For the purposes of this section and of section 44, the expression “schedule of Assessment and Evaluation” means a table giving details about the time, day and date of the commencement of each paper which is a part of a scheme of examinations and shall also include the details about the practical examinations.

(2) The Board of Assessment and Evaluation shall consist of following members namely: —

- (a) the Vice-Chancellor - Chairperson;
- (b) two Deans of faculties of the university, by rotation, nominated by the Vice-Chancellor - Member;
- (c) one evaluation expert, co-opted by the Board of Assessment and Evaluation - Member; and
- (d) the Director of Assessment and Evaluation - Member-Secretary.

(3) The powers and functions of the Board of Assessment and Evaluation shall be such as may be prescribed by the Statutes.

31. The constitution, powers and functions of other authorities of the university shall be such as may be prescribed by the Statutes.

Other
authorities.

32. A person shall be disqualified for being a member of any of the authorities or bodies of the university, if he, —

Disqualification.

- (i) is of unsound mind and stands so declared by a competent Court; or
- (ii) has been convicted of any offence involving moral turpitude; or
- (iii) is conducting or engaging himself in private coaching classes; or
- (iv) has been punished for indulging in or promoting unfair practices in the conduct of any examination, in any form, anywhere.

33. No act or proceeding of any authority or body of the university shall be invalid merely by reason of any vacancy or defect in the constitution thereof.

Vacancies not
to invalidate
act or
proceedings of
any authority
or body of
university.

34. In case there occurs any casual vacancy in any authority or body of the university, due to death, resignation or removal of a member, the same shall be filled, as early as possible, by the person or body who appoints or nominates the member whose place becomes vacant and person appointed or nominated to a casual vacancy shall be a member of such authority or

Filling of
casual
vacancies.

body for the residue of the term of such member in whose place he has been so appointed or nominated.

Committees. **35.** (1) The authorities or officers of the university may constitute committees with such terms of reference for specific tasks to be performed by such committees as may be necessary.

(2) The constitution of such committees shall be such as may be prescribed by the Statutes.

First Statutes. **36.** (1) The First Statutes of the university shall be made by the Governing Body and shall be submitted to the Government for its approval.

(2) Subject to the provisions of this Act and the rules made thereunder, the First Statutes of the university may provide for all or any of the following matters, namely: —

(a) the constitution, powers and functions of the authorities and other bodies of the university, as may be constituted, from time to time;

(b) the terms and conditions of appointment of the Vice-Chancellor and his powers and functions;

(c) the manner of appointment and terms and conditions of service of the Deans of Faculties, Registrar and Chief Finance and Accounts Officer and their powers and functions;

(d) the manner of appointment and terms and conditions of service of the employees and their powers and functions;

(e) the procedure for arbitration in case of disputes between employees, students and the university;

(f) the conferment of honorary degrees;

(g) the provisions regarding exemption of students from payment of tuition fee and for awarding scholarships and fellowships to them;

(h) provisions regarding the policy of admissions, number of seats in different courses including regulation of reservation of seats; and

(i) provisions regarding fees to be charged from the students.

(3) The Government shall consider the First Statutes, submitted by the university and shall within four months from the date of its receipt, give its approval thereon with such modifications, if any, as it may deem necessary.

Subsequent Statutes. **37.** (1) Subject to the provisions of this Act and the rules made thereunder, the subsequent Statutes of the university may provide for all or any of the following matters, namely:-

(a) creation of new authorities of the university;

(b) accounting policy and financial procedure;

(c) representation of teachers in the authorities of the university;

(d) creation of new departments and abolition or restructuring of existing departments;

(e) institution of medals and prizes;

(f) creation of posts and procedure for abolition of posts;

(g) revision of fees;

(h) alteration of the number of seats in different syllabi; and

(i) all other matters which under the provisions of this Act, are to be prescribed by the Statutes.

(2) The Statutes of the university other than the First Statutes shall be made by the Board of Management with the approval of the Governing Body.

(3) The Board of Management may, from time to time, make new or additional Statutes or may amend or repeal the Statutes so made in the manner hereinafter provided in this section:

Provided that, the Board of Management shall not make any Statute or any amendment to the Statutes affecting the status, powers or constitution of any existing authority of the university until such authority has been given an opportunity of expressing an opinion on the proposal and any opinion so expressed, shall be in writing and shall be considered by the Governing Body.

(4) Every such Statutes or addition to the Statutes or any amendment or repeal of the Statutes shall be subject to the approval of the Government:

Provided that, no Statutes shall be made by the Board of Management affecting the discipline of students and standards of instruction, education and examination except in consultation with the Academic Council.

38. (1) The First Ordinances of the university shall be made by the Governing Body and shall be submitted to the Government for its approval. First Ordinance.

(2) Subject to the provisions of this Act or the rules or Statutes made thereunder, the Board of Management may make such First Ordinances with the approval of the Governing Body as it deems appropriate for the furtherance of the objects of the university and such Ordinances may provide for all or any of the following matters, namely :—

(a) the admission of students to the university and their enrolment as such;

(b) the courses of study to be laid down for the degrees, diplomas and certificates of the university;

(c) the award of the degrees, diplomas, certificates and other academic distinctions, the minimum qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(d) the conditions for awarding of fellowships, scholarships, stipends, medals and prizes;

(e) the conduct of examinations, including the terms of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(f) fees to be charged for the various courses, examinations, degrees and diplomas of the university;

(g) the conditions of residence of the students in the hostels of the university;

(h) provisions regarding disciplinary action against the students;

(i) the creation, composition and functions of any other body which is considered necessary for improving the academic life of the university;

(j) the manner of co-operation and collaboration with other universities and institutions of higher education; and

(k) all other matters which are required to be provided by the

Ordinances under the provisions of this Act or the Statutes made thereunder.

(3) The Government shall consider the First Ordinances submitted by the Vice-Chancellor under sub-section (1) and shall give its approval within four months from the date of its receipt, with such modifications, if any, as it may deem necessary.

Subsequent Ordinances.

39. (1) All Ordinances other than the First Ordinances shall be made by the Academic Council which after being approved by the Board of Management shall be submitted to the Governing Body for its approval.

(2) The Academic Council shall either modify the Ordinances incorporating the suggestions of the Board of Management and the Governing Body or give reasons for not incorporating the suggestions and shall return the Ordinances along with such reasons, if any. The Board of Management and the Governing Body shall consider the suggestions of the Academic Council and shall approve the Ordinances of the university with or without such modification and then the Ordinances, as approved by the Governing Body, shall come into force.

Regulations.

40. The authorities of the university may, subject to the prior approval of the Board of Management, make regulations, consistent with the provisions of this Act, the rules, Statutes and the Ordinances made thereunder, for the conduct of their own business and of the committees appointed by them.

Admissions.

41. (1) Admission in the university shall be made strictly on the basis of merit.

(2) Merit for admission in the university may be determined either on the basis of marks or grade obtained in the qualifying examination, for admission and achievements in co-curricular and extra-curricular activities or on the basis of marks or grade obtained in the entrance test conducted at State level either by an association of the universities conducting similar courses or by any agency of the State:

Provided that, admission in professional and technical courses shall be made only through entrance test.

(3) Seats for admission in the university, for the students belonging to Scheduled Castes, Scheduled Tribes, De-notified Tribes (*Vimukta Jatis*), Nomadic Tribes, Other Backward Classes, Special Backward Category, Economically Weaker Section (EWS) and students with disability, shall be reserved as per the policy of the State Government.

(4) Out of the total approved intake capacity, forty per cent. of the seats shall be reserved for the students having domiciled in the State of Maharashtra.

Fees Fixation Committee.

42. (1) The university may constitute a Fees Fixation Committee for deciding fees structure for various courses and programmes offered therein. The constitution of and the procedure to be followed by the Fees Fixation Committee shall be such as may be prescribed by the Statutes.

(2) The Committee shall prepare and finalise fees structure after taking into consideration, whether the proposed fees,—

(a) is sufficient for,—

(i) generating resources for meeting the recurring expenditure of the university; and

- (ii) the savings required for further development of the university;
- (b) is not unreasonable; and
- (c) does not amount to profiteering.

(3) The Government shall have power to review the fees structure of the university and after such review, it may issue directions to the university to amend fees structure, appropriately and the university shall implement those directions.

(4) The State Government shall not reimburse any fees or shall not take any financial liability for students belonging to the backward classes admitted into the university.

(5) The university shall not charge any fees, by whatever name called, other than that for which it is entitled under this section.

43. (1) No capitation fee shall be collected by or on behalf of the university or by any person who is in charge of, or is responsible for, the management of such institution, from or in relation to any student in consideration of his admission to and prosecution of any course of study or of his promotion to a higher standard or class in such institution. Prohibition of capitation fee.

(2) Notwithstanding anything contained in sub-section (1), the management may in good faith collect or accept donations in cash or kind, in the prescribed manner, from benevolent persons or organization or public trusts or any other association of persons, for opening of new educational institutions for creation of endowment fund, for award of scholarship, prizes or the like, but while collecting or accepting such donations the management shall not reserve any seats in any educational institution run by it in consideration of such donations. Where in consideration of accepting such donations any seat is reserved for admission to any student in such institution such acceptance of donation shall be deemed to be collection of capitation fee, within the meaning of clause (a) of section 2 of the Maharashtra Educational Institutions (Prohibition of Capitation Fee) Act, 1987.

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44. At the beginning of each academic session and in any case not later than 30th June of every calendar year, the university shall prepare and publish a semester-wise or annual, as the case may be, Schedule of Assessment and Evaluation for each and every course conducted by it and shall strictly adhere to such Schedule: Schedule of Assessment and Evaluation.

Provided that, if for any reason whatsoever, university is unable to follow this Schedule, it shall, as soon as practicable, submit a report to the Government giving the detailed reasons for making a departure from the published Schedule of Assessment and Evaluation. The Government may, thereon, issue such directions as it may deem fit for better compliance in future.

45. (1) The university shall strive to declare the results of every assessment and evaluation conducted by it within thirty days from the last date of the assessment and evaluation for a particular course and shall in any case declare the results latest within forty-five days from such date: Declaration of results.

Provided that, if for any reason whatsoever, the university is unable to finally declare the results of any assessment and evaluation within the period of forty-five days, it shall submit a report incorporating the detailed reasons for such delay to the Government. The Government may, thereon, issue such directions as it may deem fit for better compliance in future.

(2) No assessment and evaluation or the results of an assessment and evaluation shall be held invalid only for the reasons that the university has not followed the schedule of Assessment and Evaluation as stipulated in section 44 of this Act or that the university has failed to declare the results within the period specified in sub-section (1).

Convocation. **46.** The convocation of the university shall be held in every academic year in the manner as may be specified by the Statutes for conferring degrees, diplomas, awards or for any other purpose.

Accreditation of university. **47.** The university shall obtain accreditation from National Council of Assessment and Accreditation (NAAC), within five years of its establishment and inform the Government and such other regulatory bodies which are connected with the courses taken up by the university about the grade provided by National Council of Assessment and Accreditation (NAAC) to the university. The university shall get renewed such accreditation at an interval of every five years thereafter.

University to follow rules, regulations, norms etc., of regulatory body. **48.** Notwithstanding anything contained in this Act, the university shall be bound to comply with all the rules, regulations, norms, etc., of the competent regulatory body and provide all such facilities and assistance to such body as are required by them to discharge their duties and carry out their functions.

Annual report. **49. (1)** The annual report of the university shall be prepared by the Board of Management which shall include among other matters, the steps taken by the university towards the fulfillment of its objects and shall be approved by the Governing Body and copy of the same shall be submitted to the sponsoring body.

(2) The copies of the annual report prepared under sub-section (1) shall also be presented to the Government.

(3) The State Government shall cause such reports to be laid before each House of the State Legislature.

Annual accounts and audit. **50. (1)** The annual accounts and balance sheet of the university shall be prepared under the directions of the Board of Management and the annual accounts shall be audited at least once in every year by the auditors appointed by the university for this purpose.

(2) A copy of the annual accounts together with the audit report shall be submitted to the Governing Body.

(3) A copy of the annual accounts and audit report along with the observations of the Governing Body shall be submitted to the sponsoring body.

(4) The copies of annual accounts and balance sheet prepared under sub-section (1) shall also be presented to the Government.

(5) The advice of the Government, if any, arising out of the accounts and audit report of the university shall be placed before the Governing Body and the Governing Body shall issue such directions, as it may deem fit and compliance thereof shall be reported to the Government.

Powers of Government to inspect university. **51. (1)** The Government may issue directions to the university to carry out or comply with the provisions of this Act and rules, Statutes or Ordinances made thereunder.

(2) The Government may appoint a Committee to inspect the administration and working of a university, at any time, after giving prior notice of such inspection to ensure proper compliance with the provisions of this Act.

(3) The Government may issue directions to the university for time bound compliance or to rectify the deficiencies or lapses pointed out by the Committee appointed under sub-section (2).

(4) For the purpose of ascertaining the standards of teaching, assessment and evaluation and research or any other matter relating to the university, the Government may, after consultation with the President and Vice-Chancellor, cause an assessment to be made in such manner as may be prescribed, by rules, by such person or persons as it may deem fit.

(5) The Government shall communicate to the university its recommendations in regard to the result of such assessment for corrective action and the university shall take such corrective measures as are necessary so as to ensure the compliance of the recommendations.

(6) If the university fails to comply with the recommendations made under sub-section (5) within a reasonable time, the Government may give such directions as it may deem fit, which shall be binding on the university.

52. (1) The sponsoring body may dissolve the university by giving a notice to this effect to the Government, the employees and the students of the university, at least one year in advance:

Dissolution of university by sponsoring body.

Provided that, dissolution of the university shall have effect only after the last batches of students of the regular courses have completed their courses and they have been awarded degrees, diplomas or awards, as the case may be.

(2) On the dissolution of the university all the assets and liabilities of the university shall, subject to the provisions of any other law for the time being in force, vest in the sponsoring body.

53. (1) If it appears to the Government that the university has contravened any of the provisions of this Act or the rules, Statutes or Ordinances made thereunder or has contravened any of the directions issued by it under this Act or has ceased to carry out any of the undertakings given under section 5 of this Act or a situation of financial mis-management or mal-administration has arisen in the university, it shall issue notice requiring the university to show cause within forty-five days as to why an order of its liquidation should not be made.

Special Powers of State Government in certain circumstances.

(2) If the Government, on receipt of reply of the university on the notice issued under sub-section (1), is satisfied that there is a *prima facie* case of contravention of all or any of the provisions of this Act or the rules, Statutes or Ordinances made thereunder or of contravention of the directions issued by it under this Act or of ceasing to carry out the undertaking given under section 5 of this Act or of financial mis-management or mal-administration, it shall make an order of such enquiry as it may consider necessary.

(3) The Government shall, for the purpose of any enquiry under sub-section (2), appoint an enquiry officer or officers to inquire into any of the allegations and to make a report thereon.

(4) The inquiry officer or officers appointed under sub-section (3) shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 while trying a suit in respect of the following matters, namely: —

5 of 1908.

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of any such document or any other material as may be producible in evidence;

(c) requisitioning any public record from any court or office; and

(d) any other matter which may be prescribed by rules.

(5) The inquiry officer or officers, inquiring under this Act, shall be deemed to be a civil court for the purposes of section 215 and Chapter XXVIII of the Bharatiya Nagarik Suraksha Sanhita, 2023. 46 of 2023.

(6) On receipt of the inquiry report from the officer or officers appointed under sub-section (3), if the Government is satisfied that the university has contravened all or any of the provisions of this Act or the rules, Statutes or Ordinances made thereunder or has violated any of the directions issued by it under this Act or has ceased to carry out the undertakings given by it under section 5 of this Act, or a situation of financial mis-management and mal-administration has arisen in the university which threatens the academic standard of the university, it shall issue a preliminary order for the liquidation of the university and appoint an administrator.

(7) The administrator appointed under sub-section (6) shall have all the powers and be subject to all the duties of the Governing Body and the Board of Management under this Act and shall administer the affairs of the university until the last batch of the students of the regular courses have completed their courses and they have been awarded degrees, diplomas or awards, as the case may be.

(8) After having awarded the degrees, diplomas or awards, as the case may be, to the last batches of the students of the regular courses, the administrator shall make a report to this effect to the Government.

(9) On receipt of the report under sub-section (8), the Government shall, by notification in the *Official Gazette*, issue a final order dissolving the university and from the date of publication of such notification, the university shall stand dissolved and all the assets and liabilities of the university shall vest in the sponsoring body from such date.

Punishment.

54. Any contravention of any of the provisions of this Act, shall be an offence and the university as well as officers of the university specified under section 16 shall be punished with imprisonment for a term which shall not be less than three months but which may extend to one year and with fine of not less than rupees fifty thousand which may extend to rupees five lakhs:

Provided that, nothing in this section shall be construed as preventing the Government from initiating any action, whether civil or criminal, for non-compliance of the provisions of this Act including proceedings for liquidation of the university.

Offences by Companies.

55. (1) Where an offence under this Act, or the rules made thereunder, is committed by a company, every person who at the time when the offence was committed, was in-charge of and was responsible to the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that, nothing contained in this sub-section shall render any person liable to any punishment, if he proves that the offence was committed

without his knowledge or that he had exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section (1), where any offence under this Act or the rules made thereunder, has been committed by a company with the consent or connivance of, or is attributable to or on the part of, any Director, Manager, Secretary or other Officer or servant of the Company, such Director, Manager, Secretary or other Officer or servant concerned shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation.—For the purposes of this section,—

(a) “Company” means a body corporate and includes a trust, a firm, a society, an institution or other association of individuals; and

(b) “Director” in relation to,—

(i) a firm means a partner in the firm;

(ii) a society, a trust, an institution or other association of persons, or body of individuals, means the person who is interested under the rules or bye-laws of the society, trust, institution or other association or body with the management of the affairs of the society, trust, institution or other association or body, as the case may be.

56. (1) The Government may, by notification published in the *Official Gazette*, make rules to carry out the purposes of this Act. Power to make rules.

(2) Every rule made under this Act shall be laid, as soon as may be after it is made, before each house of the State Legislature, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the sessions immediately following, both Houses agree in making any modification in rule or both Houses agree that the rule should not be made, and notify their decision to that effect in the *Official Gazette*, the rule shall from the date of publication of such decision in the *Official Gazette*, have effect only in such modified form or be of no effect, as the case may be; so, however that, any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

57. If the process for establishing self-financed skills university as per the existing Government orders or resolutions is completed at a particular stage on or before the date of commencement of this Act then, after commencement of this Act, such process shall be continued from that stage onwards as per the provisions of this Act. Transitory provision.

58. (1) On and from the date of commencement of this Act,- Repeal and savings.

Mah. XV
of 2021.

(a) the ATLAS SKILLTECH University, Mumbai Act, 2021;

Mah. X
of 2023.

(b) the ITM Skills University, Navi Mumbai Act, 2022;

Mah.
IX of
2024.

(c) the G.H. Raison International Skill Tech University, Pune Act, 2023;

(d) the G.H. Raisoni Skill Tech University, Nagpur Act, 2023;

Mah. X
of 2024.

(e) the Universal SkillTech University, Vasai Act, 2023;

Mah.
XIV
of 2024.

shall stand repealed.

(2) Notwithstanding the repeal of the said Acts,-

(i) any person holding office immediately before the commencement of this Act as Vice-Chancellor of an existing skills university shall, on such commencement, be the Vice-Chancellor of the corresponding university and shall continue to hold the said office till his term of office as Vice-Chancellor of the existing university would have expired had he continued to be as such unless he ceases to be the Vice-Chancellor by reason of death, resignation or otherwise before the expiry of his term of office as aforesaid and shall exercise all the powers and perform all the duties conferred and imposed on the Vice-Chancellor of the corresponding skills university by or under this Act;

(ii) every authority of an existing skills university constituted immediately before the commencement of this Act, shall be deemed to be the corresponding authority of the corresponding university under this Act;

(iii) every person holding office either as an officer or the employee (whether teaching or other employee) of an existing skills university on the date immediately before the commencement of this Act, shall continue to hold office on the same terms and conditions as were applicable to him immediately before such date, and shall exercise such powers and perform such duties as are conferred on them by or under this Act;

(iv) all property, movable or immovable, and all rights, interest of whatsoever kind, powers and privileges of any existing skills university shall stand transferred to and shall, without further assurance, vest in, the corresponding university and be applied to the objects and purposes for which the corresponding university is constituted;

(v) all benefactions accepted or received by any existing skills university and held by it immediately before the commencement of this Act, shall be deemed to have been accepted or received or held by the corresponding university under this Act and all the conditions on which such benefactions were accepted or received or held shall be deemed to be valid under this Act, notwithstanding that such conditions may be inconsistent with any of the provisions of this Act;

(vi) all debts, liabilities and obligations incurred before the commencement of this Act, and lawfully subsisting against any existing skills university, shall be discharged and satisfied by the corresponding university;

(vii) any will, deed or other documents made before the commencement of this Act, which contains any bequest, gift, term or trust in favour of an existing skills university shall, on and from the commencement of this Act, be construed as if the corresponding university is named therein instead of the existing university;

(viii) all references in any enactment or other instruments issued under any enactment, to any existing skill university shall be construed

as references to the corresponding university;

(ix) the teachers, who were recognised teachers of the university under the said Acts in respect of any of the existing skills university immediately before the commencement of this Act, shall be deemed to be recognised teachers of the corresponding university under and for the purposes of this Act and shall continue to be such recognised teachers until fresh recognitions are granted under this Act;

(x) all rules, Statutes, Ordinances or regulations made under the said Acts in respect of any existing skills university shall, in so far as they are not inconsistent with the provisions of this Act, continue in force and be deemed to have been made under this Act in respect of the corresponding university or any authority of the university, as the case may be, until they are superseded or modified by the rules, Statutes, Ordinances or regulations made under this Act;

(xi) all notices and orders made or issued by any authority under any of the said Acts shall, in so far as they are not inconsistent with the provisions of this Act, continue in force and be deemed to have been made or issued by corresponding authority until they are superseded or modified under this Act:

Provided that, no rules, Statutes, Ordinances, regulations, notices or orders made or issued under any of the Acts repealed by this section and in force immediately before the commencement of this Act, shall be deemed to be inconsistent with the provisions of this Act by reason only that the power to make or issue such rules, Statutes, Ordinance, regulations, notice or order under this Act vests in a different authority or body or officer, or that the subject matter thereof is permissible only under a different form of subordinate legislation or instrument to be made, under this Act.

59. (1) If any difficulty arises in giving effect to the provisions of this Act, the Government may, as occasion arises, by an order published in the *Official Gazette*, do anything not inconsistent with the provisions of this Act, which appears to it to be necessary or expedient for removing the difficulty:

Power to remove difficulties.

Provided that, no such order shall be made after the expiry of a period of two years from the date of commencement of this Act.

(2) Every order made under sub-section (1), shall, as soon as may be after it is made, be laid before each House of the State Legislature.

Mah.
VIII
of 2024.

60. (1) In the Schedule appended to the Maharashtra Private Universities (Establishment and Regulation) Act, 2023, entry 8 relating to the Symbiosis Skills and Professional University, Pune shall be deleted.

Amendment of Schedule of Mah. VIII of 2024.

Mah.
XXXVII
of 2017.

(2) Notwithstanding the deletion of the said entry, the said university shall be deemed to have been established under this Act for the object for which it was constituted under the Symbiosis Skills and Professional University Act, 2017 ; and the provisions of this Act shall be applicable to such university.

SCHEDULE

Part I

(See section 6(4))

Sr. No.	Name of existing university	Name, Location and headquarters of corresponding university under this Act	Name and address of Sponsoring Body (with registration Number)
(1)	(2)	(3)	(4)
1.	ATLAS SKILLTECH University, Mumbai established under ATLAS SKILLTECH University, Mumbai Act, 2021 (Mah. XV of 2021).	ATLAS SKILLTECH University, Mumbai, Equinox Business Park, Tower No. 1, Building A, CTS No. 83, 83/1 to 19 of Village Kurla, Taluka Kurla, Located at LBS Marg, Kurla West, Mumbai-400 070.	Future Technology Skills Foundation with CIN No.U80301MH2021 NPL 354978, a Company registered under section 8 of the Companies Act, 2013 having its registered office at 5D, 3rd floor, Kulsum Terrace, 7 Walton Road, Colaba, Mumbai-400 001.
2.	ITM Skills University, Navi Mumbai established under ITM Skills University, Navi Mumbai Act, 2022 (Mah. X of 2023).	ITM Skills University, Navi Mumbai, Plot No. 25 and 26, Institutional Area, Sector-4, Kharghar, Navi Mumbai-410 210.	ITM Trust, Registration No. E14745/ MUM dated 8th October, 1993, a Public Charitable Trust registered under Public Trust Act, 1950 with the Charity Commissioner, having office at Plot No.25 and 26, Institutional Area, Sector-4, Kharghar, Navi Mumbai-410 210.
3.	G.H. Rasoni International Skill Tech University, Pune established under G.H. Rasoni International Skill Tech University, Pune Act, 2023 (Mah. IX of 2024).	G.H. Rasoni International Skill Tech University, Pune, Gat no.30, 42/1,42/2,43, 44, 47 and 49, Near Dwarka Milk, Opposite Pune Solapur Highway, Kedgaon, Daund, Pune-412207.	S.G.R. Foundation Nagpur with CIN No.U80903MH2021 NPL 363419, a Company registered under section 8 of the Companies Act, 2013 having its registered office at 345, Shradha House, 6 th Floor, Kingsway, Nagpur-440001.
4.	G.H. Rasoni Skill Tech University, Nagpur established under G.H. Rasoni Skill Tech University, Nagpur Act, 2023 (Mah. X of 2024).	G.H. Rasoni Skill Tech University, Nagpur Plot no. 37-39/1, 39, Shradha Park, off. Hingna-Wadi, Link Road, Nagpur-440001.	Ankush Shikshan Sanstha Nagpur with CIN No.U80100MH2021 NPL 367188, a Company registered under section 8 of the Companies Act, 2013 having its registered office at 345, Shradha House, 6 th Floor, Kingsway, Nagpur-440001.

(1)	(2)	(3)	(4)
5.	Universal SkillTech University, Vasai established under Universal SkillTech University, Vasai Act, 2023 (Mah. XIV of 2024).	Universal SkillTech University, Vasai Universal Campus, Near Bhajanlal Dairy and Punya Dham, Kaman-Bhiwandi Road, Vasai-401208.	Vidya Vikas Education Trust, Mumbai Registration No. E21163/ MUM dated 19th August, 2003, a Public Charitable Trust registered under Public Trust Act, 1950 with the Charity Commissioner's office having its registered office at 2/3, Filka Building, Daftary Road, Opposite Railway Station, Malad East, Mumbai-400097.
6.	The Symbiosis Skills and Professional University, Pune established under the Symbiosis Skills and Professional University Act, 2017 (Mah. XXXVII of 2017).	The Symbiosis Skills and Professional University, Pune, headquarters at Kiwale, PCMC Area, Off Pune-Mumbai Expressway, Pune.	The Symbiosis Open Education Society, Pune.

SCHEDULE

Part II

(See section 6(1))

Sr. No.	Name, Location and headquarters of university.	Name and address of Sponsoring Body.
(1)	(2)	(3)
*	*	*
*	*	*